

25CHCV03095 25CHCV03095

County: los-angeles

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PLAINTIFF FORD MOTOR CREDIT COMPANY LLC'S MOTION TO
DISSOLVE INJUNCTION, RELEASE BOND, AND DISMISS CASE WITH PREJUDICE

Motion filed on May 14, 2026.

MOVING PARTY: Plaintiff Ford Motor Credit Company LLC.

RESPONDING PARTY: None.

NOTICE: OK.

RELIEF REQUESTED: Plaintiff moves to dissolve the preliminary injunction,
release and discharge the bond/undertaking, and dismiss the entire action with
prejudice.

RULING: Granted.

BACKGROUND

On August 29, 2025, Plaintiff Ford Motor Credit Company LLC
filed this action against Defendants A2Z Auto Collision, State of California
Department of Motor Vehicles, and Steven Gordon in his capacity as Director of

the Department of Motor Vehicles.

On September 4, 2025, Plaintiff filed an ex parte application for a temporary restraining order and order to show cause regarding preliminary injunction. The Court granted the application and set an OSC regarding preliminary injunction for September 17, 2025. After hearing, the Court issued a preliminary injunction restraining the transfer or lien sale of the vehicle pending trial and requiring Plaintiff to post a \$2,750 undertaking.

On October 15, 2025, default was entered against Defendant A2Z Auto Collision.

Plaintiff now moves to dissolve the injunction, release and discharge the undertaking, and dismiss the action with prejudice. No timely opposition was filed.

DISCUSSION

A court may vacate or modify an injunctive order at any time. (In re Butler (2018) 4 Cal.5th 728, 738, 741 [“flexibility is a touchstone of a court’s power to modify an injunctive order”].) Under Code of Civil Procedure section 533, the court may, on notice, modify or dissolve a preliminary injunction or temporary restraining order on a showing that: (1) there has been a material change in the facts on which the injunction or temporary restraining order was granted; (2) the law on which the injunction or temporary restraining order was granted has changed; or (3) the ends of justice would be served by modification or dissolution. (Code Civ. Proc., § 533.) The court also has inherent authority to modify a preliminary injunction. (City of San Marcos v. Coast Waste Management, Inc. (1996) 47 Cal.App.4th 320, 328.)

Plaintiff has made the required showing. The preliminary injunction, filed September 25, 2025, restrained Defendant A2Z Auto Collision, its employees, agents, and representatives from attempting to transfer or transferring the 2024 Ford Mustang, California license plate number 9RUS610, VIN number 1FAGP8UH7R5145941, pending trial. The order also enjoined the Department of Motor Vehicles and the lien sales agent from conducting a lien sale of the same vehicle pending trial and required Plaintiff to post a \$2,750 undertaking. (Prelim. Inj. Order, ¶¶ 1-4, 7.)

The facts underlying that injunctive relief have materially changed. Plaintiff's counsel declares that, after the injunction issued, the parties reached a settlement, Plaintiff recovered the vehicle, and Plaintiff paid Defendant the amounts prescribed under the California Civil Code. (Ahearn Decl., ¶ 7 & Exh. D.) Plaintiff further declares that no claims remain to be litigated and requests dismissal with prejudice and release of the undertaking. (Ahearn Decl., ¶¶ 8-9.) Thus, the injunction is no longer needed to preserve the vehicle or prevent a lien sale while the parties litigate their rights to the collateral. Plaintiff has recovered the collateral, the lien-sale dispute has been resolved by payment, and Plaintiff no longer seeks further relief in this action.

Accordingly, dissolution is warranted under Code of Civil Procedure section 533 based on a material change in facts and because the ends of justice would be served by dissolution.

CONCLUSION

The motion is GRANTED.

The preliminary injunction entered after the September 17, 2025 hearing and filed September 25, 2025 is dissolved.

The \$2,750 undertaking posted pursuant to the preliminary injunction is discharged and released.

The entire action is DISMISSED WITH PREJUDICE.

Plaintiff to give notice.